

SUBSTITUTE FOR
HOUSE BILL NO. 4412

A bill to amend 1974 PA 258, entitled
"Mental health code,"
by amending sections 401, 427, 430, 461, 468, 472a, 473, and 475
(MCL 330.1401, 330.1427, 330.1430, 330.1461, 330.1468, 330.1472a,
330.1473, and 330.1475), sections 401, 461, 468, 472a, 473, and 475
as amended by 2018 PA 593, section 427 as amended by 2016 PA 320,
and section 430 as amended by 1995 PA 290.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 401. (1) As used in this chapter, "person requiring
2 treatment" means ~~(a), (b), or (c):~~**any of the following individuals:**
3 (a) An individual who has mental illness, and who, ~~as a result~~
4 **because** of that mental illness, can reasonably be expected ~~within~~
5 **in** the near future to intentionally or unintentionally seriously



1 physically injure ~~himself, herself, the individual's self~~ or
 2 another individual, and who has engaged in an act or acts or made
 3 significant threats that are substantially supportive of the
 4 expectation.

5 (b) An individual who has mental illness, and who, ~~as a result~~
 6 **because** of that mental illness, is unable to ~~attend to those of his~~
 7 ~~or her~~ **meet the individual's** basic physical needs such as **obtaining**
 8 food, clothing, or shelter that must be ~~attended to in order~~ **met**
 9 for the individual to avoid serious harm in the near future, and
 10 who has demonstrated that inability by failing to ~~attend to~~ **meet**
 11 those basic physical needs.

12 (c) An individual who has mental illness, whose judgment is so
 13 impaired by that mental illness, and whose lack of understanding of
 14 the need for treatment has caused ~~him or her~~ **the individual** to
 15 demonstrate an unwillingness to voluntarily participate in or
 16 adhere to **necessary** treatment ~~that is necessary, on the basis of~~
 17 ~~competent clinical opinion,~~ to prevent a relapse or harmful
 18 deterioration of ~~his or her~~ **the individual's** condition, and
 19 presents a substantial risk of significant physical or mental harm
 20 to the ~~individual~~ **individual's self** or others.

21 (2) An individual whose mental processes ~~have been~~ **are**
 22 weakened or impaired by ~~a~~ dementia, an individual with a primary
 23 diagnosis of epilepsy, or an individual with alcoholism or other
 24 drug dependence is not a person requiring treatment. ~~under this~~
 25 ~~chapter unless the individual also meets the criteria specified in~~
 26 ~~subsection (1). An individual described in this subsection may be~~
 27 ~~hospitalized under the informal or formal voluntary hospitalization~~
 28 ~~provisions of this chapter if he or she is considered clinically~~
 29 ~~suitable for hospitalization by the hospital director.~~



1 Sec. 427. (1) If a peace officer ~~observes an individual~~
 2 ~~conducting himself or herself in a manner that causes the peace~~
 3 ~~officer~~ **has reasonable cause** to ~~reasonably believe that the an~~
 4 individual is a person requiring treatment, the peace officer may
 5 take the individual into protective custody and transport the
 6 individual to a preadmission screening unit designated by a
 7 community mental health services program for examination under
 8 section 429 or for mental health intervention services. The
 9 preadmission screening unit shall provide ~~those the~~ mental health
 10 intervention services that it considers appropriate or shall
 11 provide an examination under section 429. The preadmission
 12 screening services may be provided at the site of the preadmission
 13 screening unit or at a site designated by the preadmission
 14 screening unit. Upon arrival at the preadmission screening unit or
 15 site designated by the preadmission screening unit, the peace
 16 officer shall execute a petition for ~~hospitalization treatment~~ of
 17 the individual. ~~As soon as practical, the~~ **The** preadmission
 18 screening unit ~~shall offer to~~ **may** contact ~~an immediate a~~ family
 19 member of the ~~recipient individual in an emergency situation or for~~
 20 **continuity of care** to ~~let~~ **inform** the family ~~know member~~ that the
 21 ~~recipient has been taken into the individual is in~~ protective
 22 custody and where ~~he or she the individual~~ is located. The
 23 ~~preadmission screening unit shall honor the recipient's decision as~~
 24 ~~to whether an immediate family member is to be contacted and shall~~
 25 ~~document that decision in the recipient's record.~~ In the course of
 26 providing services, the preadmission screening unit may provide
 27 advice and consultation to the peace officer ~~, which that~~ may
 28 include a recommendation to release the individual from protective
 29 custody. In all cases where a peace officer ~~has executed~~ **executes** a



petition, the preadmission screening unit shall ensure that ~~an~~
~~examination is conducted by a~~ physician or licensed psychologist
examines the individual. The preadmission screening unit shall
 ensure **the** provision of follow-up counseling and diagnostic and
 referral services, if needed, if it is determined under section 429
 that the ~~person~~**individual** does not meet the requirements for
 hospitalization.

(2) A peace officer is not financially responsible for the
 cost of care of an individual for whom ~~a~~**the** peace officer ~~has~~
~~executed~~**executes** a petition under subsection (1).

(3) A hospital receiving an individual under subsection (1)
 who ~~has been~~**is** referred by a community mental health services
 program's preadmission screening unit shall notify that
preadmission screening unit of the results of ~~an~~**the hospital's**
 examination of ~~that~~**the** individual. ~~conducted by the hospital.~~

Sec. 430. **(1)** If a patient is hospitalized under section 423,
a psychiatrist shall examine the patient ~~shall be examined by a~~
~~psychiatrist~~ as soon after hospitalization as is practicable, but
 not later than 24 hours, excluding legal holidays, after
 hospitalization. The examining psychiatrist ~~shall~~**must** not be the
 same physician ~~upon~~**on** whose clinical certificate the patient was
 hospitalized. If the **examining** psychiatrist does not certify that
 the patient is a person requiring treatment, the patient ~~shall~~**must**
 be released immediately. If the **examining** psychiatrist ~~does~~**certify**
certifies that the patient is a person requiring treatment,
including a person requiring treatment in the form of
hospitalization, the patient's hospitalization may continue pending
 hearings convened ~~pursuant to~~**under** sections 451 to 465. **If the**
examining psychiatrist certifies that the patient is a person



1 requiring treatment in the form of assisted outpatient treatment, a
 2 referral must be made to the community mental health services
 3 program serving the community where the patient resides and
 4 hearings may be convened under sections 451 to 465.

5 (2) If a patient is hospitalized under section 427 and the
 6 examining physician or psychologist determines that the patient is
 7 a person requiring treatment in the form of assisted outpatient
 8 treatment, a referral must be made to the community health services
 9 program serving the community where the patient resides and
 10 hearings may be convened under sections 451 to 465.

11 Sec. 461. (1) ~~An~~ **For a petition filed under section 434(1) to**
 12 **(6), an** individual may not be found to require treatment unless at
 13 least 1 physician or licensed psychologist who has personally
 14 examined that individual testifies in person or by written
 15 deposition at the hearing.

16 (2) For a petition filed under section 434(7), ~~that does not~~
 17 ~~seek hospitalization before the hearing, an individual may not be~~
 18 ~~found to require treatment unless a psychiatrist who has personally~~
 19 ~~examined that individual testifies. A psychiatrist's testimony is~~
 20 ~~not necessary if a psychiatrist signs the petition. If a~~
 21 ~~psychiatrist signs the petition, at least 1 physician or licensed~~
 22 ~~psychologist who has personally examined that individual must~~
 23 ~~testify. The requirement for testimony may be waived by the subject~~
 24 ~~of the petition. If the testimony given in person is waived, a~~
 25 ~~clinical certificate completed by a physician, licensed~~
 26 ~~psychologist, or psychiatrist must be presented to the court before~~
 27 ~~or at the initial hearing.~~ **an individual may be found to require**
 28 **treatment if both of the following apply:**

29 (a) Except as otherwise provided in this subdivision, a



1 physician, psychologist, or qualified health professional
 2 personally examines the individual and testifies that the
 3 individual requires treatment. The subject of the petition may
 4 waive the requirement for testimony.

5 (b) Except as otherwise provided in this subdivision, evidence
 6 is presented that the physician, psychologist, or qualified health
 7 professional who examined the individual under subdivision (a)
 8 discussed the examination findings and the treatment plan for the
 9 individual with a psychiatrist before trial. This subdivision does
 10 not apply to a psychiatrist.

11 (3) ~~The examinations required under this section for a~~
 12 ~~petition filed under section 434(7) shall be arranged by the court~~
 13 ~~and the local community mental health services program or other~~
 14 ~~entity as designated by the department shall arrange the~~
 15 **examinations required under this section for a petition filed under**
 16 **section 434(7).**

17 (4) A written deposition may be introduced as evidence at the
 18 hearing only if the attorney for the subject of the petition was
 19 given the opportunity to be present during the taking of the
 20 deposition and to cross-examine the deponent. ~~This testimony or~~
 21 ~~deposition may be waived by the subject of a petition. An~~
 22 ~~individual may be found to require treatment even if the petitioner~~
 23 ~~does not testify, as long as there is competent evidence from which~~
 24 ~~the relevant criteria in section 401 can be established.~~

25 (5) As used in this section:

26 (a) "Psychiatric nurse practitioner" means an individual who
 27 is licensed as a registered professional nurse under part 172 of
 28 the public health code, 1978 PA 368, MCL 333.17201 to 333.17242,
 29 who has been granted a specialty certification as a nurse



1 practitioner by the Michigan board of nursing under section 17210
 2 of the public health code, 1978 PA 368, MCL 333.17210, and who has
 3 training in the area of mental health.

4 (b) "Qualified health professional" means a psychiatric nurse
 5 practitioner who is acting under the delegation of a psychiatrist
 6 under section 16215 of the public health code, 1978 PA 368, MCL
 7 333.16215, or a physician's assistant who is acting pursuant to a
 8 practice agreement with a psychiatrist under article 15 of the
 9 public health code, 1978 PA 368, MCL 333.16101 to 333.18838.

10 Sec. 468. (1) For a petition filed under section 434, if the
 11 court finds that an individual is not a person requiring treatment,
 12 the court shall enter a finding to that effect and, if the ~~person~~
 13 ~~has been~~ **individual is** hospitalized before the hearing, shall order
 14 that the ~~person~~ **individual** be discharged immediately.

15 (2) For a petition filed under section 434, if **the court finds**
 16 **that** an individual is ~~found to be~~ a person requiring treatment, the
 17 court shall do 1 of the following:

18 (a) Order the individual hospitalized in a hospital
 19 recommended by the community mental health services program or
 20 other entity as designated by the department.

21 (b) Order the individual hospitalized in a private or ~~veterans~~
 22 ~~administration~~ **Veterans Administration** hospital at the request of
 23 the individual or ~~his or her~~ **the individual's** family, if private or
 24 federal funds ~~are to~~ **will** be utilized and if the hospital agrees.
 25 If the individual is hospitalized in a private or Veterans
 26 Administration hospital under this subdivision, ~~any~~ **a** financial
 27 obligation for the hospitalization ~~shall~~ **must** be satisfied from
 28 funding sources other than the community mental health services
 29 program, the department, or other state or county funding.



(c) Order the individual to undergo a program of combined hospitalization and assisted outpatient treatment, as recommended by the community mental health services program or other entity as designated by the department.

(d) ~~Order~~ **Except as otherwise provided in this subdivision, order** the individual to receive assisted outpatient treatment through a community mental health services program ~~7~~ or other entity as designated by the department, capable of providing the necessary treatment and services to ~~assist~~ **help** the individual ~~to~~ live and function in the community. ~~as specified in the order. The~~ **Subject to subsections (3) and (6), the community mental health services program or other entity as designated by the department as described in this subdivision shall have the sole discretion to make decisions regarding the assessment, treatment, and discharge of an individual receiving assisted outpatient treatment. This includes the type, scope, frequency, intensity, and duration of the treatment of the individual receiving assisted outpatient treatment. If the community mental health services program or other entity as designated by the department does not communicate with the court regarding the treatment of the individual receiving assisted outpatient treatment, the court shall hold a hearing regarding the treatment provided to the individual receiving assisted outpatient treatment by the community mental health services program or other entity as designated by the department. Except as otherwise provided in this subdivision, the court order may include a case management plan and case management services and 1 or more of the following:**

(i) Medication.

(ii) Blood or urinalysis tests to determine compliance with or



effectiveness of prescribed medication.

(iii) Individual or group therapy, or both.

(iv) Day or partial day programs.

(v) Educational or vocational training.

(vi) Supervised living.

(vii) Assertive community treatment team services.

(viii) Substance use disorder treatment.

(ix) Substance use disorder testing for individuals with a history of alcohol or substance use and for whom ~~that~~ **the** testing is necessary to assist the court in ordering treatment designed to prevent deterioration. A court order for substance use testing is subject to **a** review hearing once every 180 days.

(x) ~~Any other~~ **Other** services ~~prescribed~~ to treat the individual's mental illness and either ~~to assist~~ **help** the individual ~~in living and functioning~~ **live and function** in the community or ~~to help~~ prevent a relapse or deterioration. ~~that may reasonably be predicted to result in suicide or the need for hospitalization.~~

(3) In developing an assisted outpatient treatment plan, a psychiatrist shall supervise the preparation and implementation of the assisted outpatient treatment plan. The assisted outpatient treatment plan ~~shall~~ **must** be completed ~~within~~ **not later than** 30 days after entry of the court's order ~~of~~ **for** assisted outpatient treatment and a ~~copy shall~~ **certificate of completion of the assisted outpatient treatment plan must** be forwarded to the probate court for filing ~~within~~ **not later than** 3 days after completion of the plan to be maintained in the court file.

(4) In developing an **order for** assisted outpatient treatment, ~~order,~~ the court shall consider ~~any~~ **a** preference or medication



1 experience reported by the individual or ~~his or her~~ **the**
 2 **individual's** designated representative, whether ~~or not~~ the
 3 individual has an existing individual plan of services under
 4 section 712, and ~~any direction included in a~~ **directions in an**
 5 **existing** durable power of attorney or advance directive. ~~that~~
 6 ~~exists.~~

7 (5) Before an order ~~of~~ **for** assisted outpatient treatment
 8 expires, if the individual has not ~~previously~~ designated a patient
 9 advocate or executed a durable power of attorney or an advance
 10 directive, the responsible community mental health services program
 11 or other entity as designated by the department shall ascertain
 12 whether the individual desires to establish a durable power of
 13 attorney or an advance directive. If so, the community mental
 14 health services program or other entity as designated by the
 15 department shall direct the individual to the appropriate community
 16 resource for assistance in developing a durable power of attorney
 17 or an advance directive.

18 (6) If an order for assisted outpatient treatment conflicts
 19 with the provisions of an existing durable power of attorney,
 20 advance directive, or individual plan of services developed under
 21 section 712, the **order for** assisted outpatient treatment ~~order~~
 22 ~~shall~~ **must** be reviewed for possible adjustment by a psychiatrist
 23 not previously involved with developing the **order for** assisted
 24 outpatient treatment. ~~order.~~ If an order for assisted outpatient
 25 treatment conflicts with the provisions of an existing advance
 26 directive, durable power of attorney, or individual plan of
 27 services developed under section 712, the court shall state the
 28 court's findings on the record or in writing if the court takes the
 29 matter under advisement, including the reason for the conflict.



1 Sec. 472a. (1) Upon the filing of a petition under section 434
2 and a finding that an individual is a person requiring treatment,
3 the court shall issue an initial order ~~of~~**for** involuntary mental
4 health treatment that ~~shall~~**must** be limited in duration as follows:

5 (a) An initial order ~~of~~**for** hospitalization ~~shall~~**must** not
6 exceed 60 days.

7 (b) An initial order ~~of~~**for** assisted outpatient treatment
8 ~~shall~~**must** not exceed 180 days.

9 (c) An initial order ~~of~~**for** combined hospitalization and
10 assisted outpatient treatment ~~shall~~**must** not exceed 180 days. The
11 hospitalization portion of the initial order ~~shall~~**must** not exceed
12 60 days.

13 (2) Upon the receipt of a petition under section 473 before
14 the expiration of an initial order under subsection (1) and a
15 finding that the individual continues to be a person requiring
16 treatment, the court shall issue a second order for involuntary
17 mental health treatment that ~~shall~~**must be limited in duration as**
18 **follows:**

19 (a) **A second order for hospitalization must** not exceed 90
20 days.

21 (b) **A second order for assisted outpatient treatment must not**
22 **exceed 1 year.**

23 (c) **A second order for combined hospitalization and assisted**
24 **outpatient treatment must not exceed 1 year. The hospitalization**
25 **portion of the second order must not exceed 90 days.**

26 (3) Upon the receipt of a petition under section 473 before
27 the expiration of a second order under subsection (2) and a finding
28 that the individual continues to be a person requiring treatment,
29 the court shall issue a continuing order for involuntary mental



1 health treatment that ~~shall~~**must be limited in duration as follows:**

2 (a) A continuing order for hospitalization must not exceed 1
3 year.

4 (b) A continuing order for assisted outpatient treatment must
5 not exceed 1 year.

6 (c) A continuing order for combined hospitalization and
7 assisted outpatient treatment must not exceed 1 year. The
8 hospitalization portion of a continuing order for combined
9 hospitalization and assisted outpatient treatment must not exceed
10 90 days.

11 (4) Upon the receipt of a petition under section 473 before
12 the expiration of a continuing order ~~of~~**for** involuntary mental
13 health treatment, including a continuing order issued under section
14 485a or a 1-year order ~~of~~**for** hospitalization issued under former
15 section 472, and a finding that the individual continues to be a
16 person requiring treatment, the court shall issue another
17 continuing order for involuntary mental health treatment ~~as~~
18 ~~provided in~~**under** subsection (3) for a period not to exceed 1 year.
19 The court shall continue to issue consecutive 1-year continuing
20 orders for involuntary mental health treatment under this section
21 until a continuing order expires without a petition having been
22 filed under section 473 or the court finds that the individual is
23 not a person requiring treatment.

24 (5) If a petition for an order ~~of~~**for** involuntary mental
25 health treatment is not brought under section 473 at least 14 days
26 before the expiration of an order ~~of~~**for** involuntary mental health
27 treatment ~~as described in~~**under** subsections (2) to (4), ~~a person an~~
28 **individual** who believes that ~~an another~~ individual continues to be
29 a person requiring treatment may ~~file a~~ petition, under section



1 434, for an initial order ~~of~~**for** involuntary mental health
 2 treatment ~~as described in~~**under** subsection (1).

3 Sec. 473. ~~(1) Not less than 14 days~~**Except as otherwise**
 4 **provided in this section**, before the expiration of an initial,
 5 second, or continuing order ~~of~~**for** involuntary mental health
 6 treatment issued under section 472a or section 485a, a hospital
 7 director, ~~or an agency, or mental health professional~~**physician,**
 8 **psychologist, or qualified health professional** supervising an
 9 individual's assisted outpatient treatment shall file a petition
 10 for a second or continuing order ~~of~~**for** involuntary mental health
 11 treatment if the hospital director or supervisor believes the
 12 individual continues to be a person requiring treatment and that
 13 the individual is likely to refuse treatment on a voluntary basis
 14 when the order expires. The petition ~~shall~~**must** contain a statement
 15 setting forth the reasons for the ~~hospital director's or~~
 16 ~~supervisor's or their joint~~ determination that the individual
 17 continues to be a person requiring treatment, a statement
 18 describing the treatment program provided to the individual, the
 19 results of that ~~course of treatment~~ **, program**, and a clinical
 20 estimate ~~as to~~**of** the time further treatment will be required. The
 21 petition ~~shall~~**for an individual who is hospitalized must** be
 22 accompanied by ~~a~~**both of the following**:

23 (a) A clinical certificate executed by a
 24 ~~psychiatrist~~**physician, psychologist, or qualified health**
 25 **professional.**

26 (b) **Except as otherwise provided in this subdivision, evidence**
 27 **that the physician, psychologist, or qualified health professional**
 28 **who executed the clinical certificate under subdivision (a)**
 29 **examined the individual subject to the petition and discussed the**



1 examination findings and the treatment program for the individual
2 with a psychiatrist during or immediately after the examination.
3 This subdivision does not apply to a psychiatrist.

4 (2) Before the expiration of an initial, second, or continuing
5 order for assisted outpatient treatment issued under section 472a,
6 a hospital director, agency, physician, psychologist, or qualified
7 health professional supervising an individual's assisted outpatient
8 treatment, or an individual 18 years of age or older, may file a
9 petition for a second or continuing order for involuntary mental
10 health treatment if the individual continues to be a person
11 requiring treatment and the individual is likely to refuse
12 treatment on a voluntary basis when the order expires. The petition
13 must contain a statement setting forth the reason for the
14 determination that the individual continues to be a person
15 requiring treatment, a statement describing the treatment program
16 provided to the individual, the results of that treatment program,
17 and a clinical estimate of the time further treatment will be
18 required. The petition for an individual who is hospitalized must
19 be accompanied by both of the following:

20 (a) A clinical certificate executed by a physician,
21 psychologist, or qualified health professional.

22 (b) Except as otherwise provided in this subdivision, evidence
23 that the physician, psychologist, or qualified health professional
24 who executed the clinical certificate under subdivision (a)
25 examined the individual subject to the petition and discussed the
26 examination findings and the treatment program for the individual
27 with a psychiatrist during or immediately after the examination.
28 This subdivision does not apply to a psychiatrist.

29 (3) If an individual is subject to an order for involuntary

1 mental health treatment issued under section 472a or 485a, and a
2 petition for a second or continuing order for involuntary health
3 treatment is filed, the current order for involuntary health
4 treatment shall remain in full force and effect until the pending
5 petition is resolved.

6 (4) As used in this section:

7 (a) "Psychiatric nurse practitioner" means an individual who
8 is licensed as a registered professional nurse under part 172 of
9 the public health code, 1978 PA 368, MCL 333.17201 to 333.17242,
10 who has been granted a specialty certification as a nurse
11 practitioner by the Michigan board of nursing under section 17210
12 of the public health code, 1978 PA 368, MCL 333.17210, and who has
13 training in the area of mental health.

14 (b) "Qualified health professional" means a psychiatric nurse
15 practitioner who is acting under the delegation and supervision of
16 a psychiatrist under section 16215 of the public health code, 1978
17 PA 368, MCL 333.16215, or a physician's assistant who is acting
18 under the supervision of, and pursuant to a practice agreement
19 with, a psychiatrist under article 15 of the public health code,
20 1978 PA 368, MCL 333.16101 to 333.18838.

21 Sec. 475. (1) During the period of an order for assisted
22 outpatient treatment or combined hospitalization and assisted
23 outpatient treatment, if the agency or mental health professional
24 who is supervising an individual's assisted outpatient treatment
25 program determines that the individual is not complying with the
26 court order or that the assisted outpatient treatment has not been
27 or will not be sufficient to prevent harm that the individual may
28 inflict on ~~himself or herself~~ **the individual's self** or upon others,
29 then the supervising agency or mental health professional shall



1 notify the court immediately. If the individual believes that the
 2 assisted outpatient treatment program is not appropriate, the
 3 individual may notify the court of that fact.

4 (2) If it comes to the attention of the court that an
 5 individual subject to an order ~~of~~**for** assisted outpatient treatment
 6 or combined hospitalization and assisted outpatient treatment is
 7 not complying with the order, that the assisted outpatient
 8 treatment has not been or will not be sufficient to prevent harm to
 9 the ~~individual or to~~**individual's self or** others, or that the
 10 individual believes that the assisted outpatient treatment program
 11 is not appropriate, the court may do ~~either~~**any** of the following
 12 without a hearing and based ~~upon~~**on** the record and other available
 13 information:

14 (a) Consider ~~other~~ alternatives to hospitalization and modify
 15 the order to direct the individual to undergo another program of
 16 assisted outpatient treatment for the ~~duration of the order.~~**order's**
 17 **duration.**

18 (b) Modify the order to direct the individual to undergo
 19 hospitalization or combined hospitalization and assisted outpatient
 20 treatment. The duration of the hospitalization, including the
 21 number of days the individual has already been hospitalized if the
 22 order being modified is a combined order, ~~shall~~**must** not exceed 60
 23 days for an initial order or 90 days for a second or continuing
 24 order. The modified order may provide that if the individual
 25 refuses to comply with the psychiatrist's order to return to the
 26 hospital, a peace officer shall take the individual into protective
 27 custody and transport the individual to ~~the~~**a particular** hospital.
 28 ~~selected.~~

29 (c) Convene a status conference with the supervising agency



1 **and the individual to review the individual's compliance with the**
 2 **order.**

3 ~~(3) During the period of an order for assisted outpatient~~
 4 ~~treatment or a combination of hospitalization and assisted~~
 5 ~~outpatient treatment, if the agency or mental health professional~~
 6 ~~who is supervising an individual's assisted outpatient treatment~~
 7 ~~determines that the individual is not complying with the court~~
 8 ~~order, the supervising agency or mental health professional shall~~
 9 ~~notify the court immediately.~~

10 ~~(4) If it comes to the attention of the court that an~~
 11 ~~individual subject to an order of assisted outpatient treatment or~~
 12 ~~a combination of hospitalization and assisted outpatient treatment~~
 13 ~~is not complying with the order, the court may require 1 or more of~~
 14 ~~the following, without a hearing:~~

15 **(d) (a) That Require that** the individual be taken to the
 16 preadmission screening unit established by the community mental
 17 health services program serving the community in which the
 18 individual resides.

19 ~~(b) That the individual be hospitalized for a period of not~~
 20 ~~more than 10 days.~~

21 **(e) (c) Upon On the** recommendation ~~by of~~ the community mental
 22 health services program serving the community in which the
 23 individual resides, **require** that the individual be hospitalized for
 24 a period of more than 10 days, but not longer than the duration of
 25 the order for assisted outpatient treatment or a combination of
 26 hospitalization and assisted outpatient treatment, or not longer
 27 than 90 days, whichever is less.

28 **(3) (5)** The court may direct peace officers to transport the
 29 individual to a designated facility or a preadmission screening



1 unit, ~~as applicable,~~ and the court may specify **the** conditions under
2 which the individual may return to assisted outpatient treatment
3 before the order expires.

4 **(4)** ~~(6)~~—An individual hospitalized without a hearing ~~as~~
5 ~~provided in~~ **under** subsection ~~(4)~~ **(2)** may object to the
6 hospitalization according to the provisions of section 475a.